

Amendment No. 1 to SB0308

Briggs
Signature of Sponsor

AMEND Senate Bill No. 308*

House Bill No. 381

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 57-4-102(42), is amended by adding the following new subdivision:

- (i) "Urban park center" also includes a commercially operated facility or designated area that:
 - (a) Is located less than two hundred fifty feet (250') from a commercial train railyard, less than seven hundred fifty feet (750') from the oldest continuously operating public cemetery in the largest city in the county, and less than one thousand two hundred feet (1,200') from an Italianate residence constructed on the site of a log cabin that predates the Civil War and that was once owned by a Nashville-based music group named after the grandfather of the band members;
 - (b) Is an entertainment complex with at least one (1) facility having a capacity for at least five hundred (500) patrons that is used for live music performances; and
 - (c) Is located in a county with a metropolitan government with a population greater than five hundred thousand (500,000), according to the 2020 or a subsequent federal census;
- (ii) An urban park center licensed under this subdivision (42)() may grant a franchise for the provision of food or beverage, including alcoholic beverages, on its

premises, and the holder of such franchise is deemed to be a licensee under this subdivision (42)() ;

(iii) The premises of a facility licensed under this subdivision (42)() means any or all of the property that constitutes the facility. The licensee shall designate the premises to be licensed by the commission by filing a drawing of the premises, which may be amended by the licensee filing a new drawing. The entire designated premises is covered under one (1) license issued under this subdivision (42)() ; and

(iv) Notwithstanding chapter 5 of this title to the contrary, the premises of a facility licensed under this subdivision (42)() means, for beer permitting purposes, any or all of the property that constitutes the facility. The beer permittee shall designate the premises to be permitted by the local beer board by filing a drawing of the premises, which may be amended by the beer permittee filing a new drawing. The entire designated premises is covered under one (1) beer permit issued under chapter 5 of this title;

SECTION 2. Tennessee Code Annotated, Section 57-4-301(b)(3), is amended by deleting the subdivision and substituting:

(3) Notwithstanding subdivision (b)(1)(E) to the contrary, "urban park centers" under § 57-4-102(42)(G)-(K), (S), and () shall pay an annual privilege tax of four thousand dollars (\$4,000) to be earmarked for and allocated to the commission for the purpose of administration and enforcement of the duties, powers, and functions of the commission.

SECTION 3. Tennessee Code Annotated, Section 57-4-102(42), is amended by adding the following new subdivision:

() "Urban park center" also means a facility that:

(i) Opened in October of 1962 and has a seating capacity of approximately nine thousand seven hundred (9,700);

(ii) Issues approximately forty-five (45) event licenses per year;

(iii) Uses a third-party concessions operator that operates a grill cart, deep fry cart, pretzel cart, pizza oven, and hot dog stand;

(iv) Serves as an event venue for circuses, church conferences, concerts, comedy shows, youth sporting events, professional sporting events, private events, corporate events, and fighting events;

(v) Rents out the exhibition level of the venue to a museum; and

(vi) Is located in the urban services district of a county with a metropolitan government with a population of not less than five hundred thousand (500,000), according to the 2020 or a subsequent federal census;

SECTION 4. Tennessee Code Annotated, Section 57-4-301(b)(3), is amended by deleting the subdivision and substituting:

(3) Notwithstanding subdivision (b)(1)(E) to the contrary, "urban park centers" under § 57-4-102(40)(G)-(K), (S), and () shall pay an annual privilege tax of four thousand dollars (\$4,000) to be earmarked for and allocated to the commission for the purpose of administration and enforcement of the duties, powers, and functions of the commission.

SECTION 5. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following new subdivision:

(i) A commercially operated facility that:

(a) Is named after a star historically used for nautical navigation, was established in 2024, and is situated on at least thirty-five (35) acres along the western side of the Cumberland Plateau, less than three thousand feet (3,000') from a river named after a genus of bamboo native to North America and less than twelve (12) miles north of a water fall in a state park bearing the name of the fall that contains more than thirty thousand (30,000) acres;

(b) Offers sleeping accommodations for adequate pay to travelers and guests whether transient, permanent, or residential, totaling eight (8) or more rooms, with a common area lodge; and

(c) Is located in a county having a population of not less than twenty-seven thousand three hundred (27,300) and not more than twenty-seven thousand four hundred (27,400), according to the 2020 or a subsequent federal census;

(ii) The premises of a facility licensed under this subdivision (29)() means any and all of the property that constitutes the facility. A licensee shall designate the premises to be licensed by the commission by filing a drawing of the premises, which may be amended by the licensee filing a new drawing;

(iii) A facility licensed under this subdivision (29)() may grant a franchise for the provision of food or beverage, including alcoholic beverages, on its premises, and the holder of such franchise is deemed to be a licensee under this subdivision (29)(); and

(iv) A facility licensed under this subdivision (29)() may engage in any activity related to the sale, dispensing, or giving away of alcoholic beverages and beer authorized under the authority granted to a hotel licensed under §§ 57-4-102, 57-4-101(h), and 57-4-203(e)(2)(A), notwithstanding that the facility is not located in a jurisdiction that has approved the consumption of alcoholic beverages on the premises by referendum;

SECTION 6. Tennessee Code Annotated, Section 57-4-102(42), is amended by adding the following new subdivision:

(i) "Urban park center" also means a commercially operated facility that is located at the corner of a municipal street bearing the name of a native of the municipality who was named a major league baseball rookie of the year, located within one hundred feet (100') of a baseball park for a minor league affiliate of a major league baseball team, located within one thousand feet (1,000') of a navigable river, located

within one thousand five hundred feet (1,500') of a state park commemorating the bicentennial of the state's anniversary, has a capacity for at least one thousand one hundred (1,100) persons, and is located in a county with a metropolitan form of government having a population of not less than five hundred thousand (500,000), according to the 2020 federal census or a subsequent federal census; and

(ii) An urban park center licensed under this subdivision (42)() may grant a franchise for the provision of food or beverages, including alcoholic beverages, on its premises, and the holder of such franchise is deemed to be a licensee under this subdivision (42)();

SECTION 7. Tennessee Code Annotated, Section 57-4-301(b)(3), is amended by deleting the subdivision and substituting:

(3) Notwithstanding subdivision (b)(1)(E) to the contrary, "urban park centers" under § 57-4-102(42)(G)-(K), (S), and () shall pay an annual privilege tax of four thousand dollars (\$4,000) to be earmarked for and allocated to the commission for the purpose of administration and enforcement of the duties, powers, and functions of the commission.

SECTION 8. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following new subdivision:

(i) A commercially operated facility that:

(a) Is located less than one thousand feet (1,000') northeast of a historic music venue known as the mother church of country music, less than two hundred fifty feet (250') west of a navigable waterway, less than one thousand one hundred feet (1,100') from a pedestrian bridge named after a prominent journalist and civil rights advocate, and less than one thousand six hundred feet (1,600') from a structure containing the primary offices of the municipality and the county courts of record;

(b) Offers sleeping accommodations for adequate pay to travelers and guests whether transient, permanent, or residential, totaling thirty (30) or more rooms;

(c) Regularly serves one (1) or more meals in a dining room for guests, with seating, both indoors and outdoors, for not less than fifty (50) persons. Seating may include couches and coffee tables, arm chairs and side tables, and other casual seating and tables; and

(d) Is located in a county with a metropolitan government with a population of more than five hundred thousand (500,000), according to the 2020 or a subsequent federal census;

(ii) A facility licensed under this subdivision (29)() may grant a franchise for the provision of food or beverages, including alcoholic beverages, on its premises, and the holder of such franchise is deemed to be a licensee under this subdivision (29)();

(iii) A facility licensed under this subdivision (29)() may engage in any activity related to the sale, dispensing, or giving away of alcoholic beverages and beer authorized under the authority granted to a hotel under §§ 57-4-102, 57-4-101(h), and 57-4-203(e)(2)(A);

(iv) A facility licensed under this subdivision (29)() is not required to comply with § 57-4-101(p) in the facility. A restaurant or limited service restaurant separately licensed in the facility is not required to comply with § 57-4-101(p), except at times and in areas where more than one (1) licensee is providing beer or alcoholic beverages at the same time and in the same area in the facility. Compliance with § 57-4-101(p) includes affixing stickers to the alcoholic beverage or beer container in lieu of serving the beverage in a labeled cup or glassware; provided, that a sticker identifying the licensee is reasonably designed to stay affixed to a container; and

(v) Any and all terms, allowances, and authorizations of this subdivision (29)() that apply to licensees also apply to the beer permits of such licensees.

SECTION 9. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following new subdivision:

(i) A commercially operated facility that:

(a) Is located within one thousand four hundred feet (1,400') from a religious structure that is over one hundred (100) years old and hosts the Diocese of Nashville, within one thousand four hundred feet (1,400') from a municipal park named after a celebrated pianist and music producer, and within two thousand feet (2,000') from a controlled-access highway of the Eisenhower Interstate System;

(b) Operates as a mixed-use community combining residences, offices, and retail spaces in a structure with at least twenty-five (25) floors that contains two hundred fifty (250) or more residential spaces, which may include hotel rooms, residential units, or both;

(c) Offers sleeping accommodations for adequate pay to travelers whether transient, permanent, or residential, in hotel rooms or through managed private residential units;

(d) Has a restaurant where meals are regularly served with one (1) or more public dining rooms, adequate and sanitary kitchen facilities, and seating for not less than fifty (50) persons; and

(e) Is located in a county with a metropolitan form of government having a population of not less than five hundred thousand (500,000), according to the 2020 or a subsequent federal census;

(ii) A facility licensed under this subdivision (29)() may grant a franchise to one (1) or more entities for the provision of food or beverages, including alcoholic beverages, on its premises, and a holder of such franchise is deemed to be a licensee under this subdivision (29)();

(iii) The premises of any facility licensed under this subdivision (29)(), and permitted under chapter 5 of this title for beer, may include private residences managed by the owner of the facility or its franchisee, and such residences may be included in the licensed premises upon filing a memorandum of management agreement signed by the owner of each private residence;

(iv) The premises of any facility licensed under this subdivision (29)(), and permitted under chapter 5 of this title for beer, means any or all of the property that constitutes the facility, including all enclosed and outdoor areas of the property, and further including hallways, elevators, and other passageways to private residences managed by the owner of the facility or its franchisee. The licensee shall designate the premises to be licensed by the commission by filing a drawing of the premises, which may be amended by the licensee filing a new drawing. The designated premises need not include all of the facility. The entire designated premises is covered under one (1) license issued under this subdivision (29)() and one (1) beer permit issued under chapter 5 of this title;

(v) A facility licensed under this subdivision (29)() may engage in any activity related to the sale, dispensing, or giving away of alcoholic beverages and beer authorized under the authority granted to a hotel under §§ 57-4-102, 57-4-101(h), and 57-4-203(e)(2)(A);

(vi) Facilities licensed under the subdivision (29)(), and restaurants or limited service restaurants separately licensed in the facility, are not required to comply with § 57-4-101(p), except at times and in areas where more than one (1) licensee is providing beer or alcoholic beverages at the same time and in the same area in the facility. Compliance with § 57-4-101(p) includes affixing stickers to the alcoholic beverage or beer container in lieu of serving the beverage in a labeled cup or glassware; provided, that a sticker identifying the licensee is reasonably designed to stay affixed to a container; and

(vii) Any and all terms, allowances, and authorizations of this subdivision (29)() that apply to licensees also apply to the beer permits of such licensees;

SECTION 10. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following new subdivision:

(i) A commercially or privately operated recreational facility containing all of the following characteristics:

(a) Situated on one (1) or more parcels of land that totals at least one and one-half (1.5) acres;

(b) Located in a commercial development with approximately forty-four thousand square feet (44,000 sq. ft.) of retail and restaurant space and approximately seventy-three thousand square feet (73,000 sq. ft.) of office space;

(c) Located within two thousand feet (2,000') of a private Christian university founded as a women's college in 1890, three thousand five hundred feet (3,500') of an antebellum building that was originally a residence, and five thousand feet (5,000') of a municipal masonry reservoir constructed prior to 1900;

(d) Operates a private golf and social club established prior to 2027 with one (1) or more indoor virtual golf simulators for use by its members and their guests; and

(e) Is located in a county with a metropolitan form of government having a population of not less than five hundred thousand (500,000), according to the 2020 federal census or any subsequent federal census;

(ii) The premises of a facility licensed under this subdivision (29)() means any or all of the property that constitutes the facility, including any noncontiguous portions. The licensee shall designate the premises to be licensed by the commission by filing a drawing of the premises, which may be amended by the licensee filing a new drawing;

(iii) Notwithstanding chapter 5 of this title to the contrary, the premises of a facility licensed under this subdivision (29)() means, for beer permitting purposes, any or all of the property that constitutes the facility as designated in this subdivision (29)(). The beer permittee shall designate the premises to be permitted by the local beer board by filing a drawing of the premises, which may be amended by the beer permittee filing a new drawing;

(iv) A facility licensed under this subdivision (29)() may serve alcoholic beverages and beer anywhere on the premises, including noncontiguous portions of the premises; and

(v) A facility licensed under this subdivision (29)() may grant a franchise for the provision of food or beverage, including alcoholic beverages, on its premises, and the holder of such franchise shall also be considered a licensee under this subdivision (29)();

SECTION 11. Tennessee Code Annotated, Section 57-4-102(26), is amended by deleting subdivision (C) and substituting instead:

(i) "Museum" also means a building or institution serving as a repository or exhibition facility for works of art for public display and further possesses the following characteristics:

(a) Is owned and operated by a bona fide charitable organization;

(b) Is located in a building that previously served as a United States postal service facility and contains not less than one hundred thousand square feet (100,000 sq. ft.); and

(c) Is located in a county with a metropolitan form of government with a population of not less than five hundred thousand (500,000), according to the 2020 or any subsequent federal census;

(ii) A museum licensed under this subdivision (26)(C) may grant a franchise for the provision of food or beverage, including alcoholic beverages, on its premises, and the holder of such franchise is deemed to be a licensee under this subdivision (26)(C);

(iii) A museum or its franchisee licensed under this subdivision (26)(C) may seek an additional license as a caterer under subdivision (6), but is not required to have a complete and adequate commercial kitchen facility;

(iv) A museum licensed under this subdivision (26)(C) is not required to comply with § 57-4-101(p) in the facility. A franchisee licensed under this subdivision (26)(C) is required to comply with § 57-4-101(p), unless the museum and franchisee are providing alcoholic beverages at the same time and in the same space in the facility. Section 57-4-101(p) only applies to the franchisee in the shared space. Compliance with § 57-4-101(p) includes affixing stickers to the alcoholic beverage or beer container in lieu of serving the beverage in a labeled cup or glassware; provided, that a sticker identifying the franchisee is reasonably designed to stay affixed to a container;

(v) The premises of a museum licensed under this subdivision (26)(C) means any or all of the property that constitutes the facility. The licensee shall designate the premises to be licensed by the commission and the municipal beer board by filing a drawing of the premises, which may be amended by the licensee filing a new drawing;

(vi) The second sentence of § 57-4-101(a)(10) does not apply to a museum licensed under this subdivision (26)(C); and

(vii) Any and all terms, allowances, and authorizations of this subdivision (26)(C) that apply to licensees also apply to the beer permits of such licensees;

SECTION 12. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following new subdivision:

(i) A commercially operated facility that:

(a) Operates as a hotel and is located at the site of two (2) historic buildings constructed in the 1800s;

(b) Is situated adjacent to an alley that is named after and formerly was home to a thriving printing and newspaper industry, is less than two hundred feet (200') from an arcade opened in 1902 that has been listed on the National Register of Historic Places since 1973, and is less than two hundred feet (200') from a building that is over four hundred feet (400') tall and constructed before 1960;

(c) Offers sleeping accommodations for adequate pay to travelers and guests, whether transient, permanent, or residential, totaling one hundred sixty (160) or more rooms;

(d) Has at least one (1) restaurant where meals are regularly served with one (1) or more public dining rooms, adequate and sanitary kitchen facilities, and seating for not less than fifty (50) persons; and

(e) Is located in a county with a metropolitan form of government with a population greater than five hundred thousand (500,000), according to the 2020 or a subsequent federal census;

(ii) The premises of a facility licensed under this subdivision (29)() means any and all of the property that constitutes the facility. A licensee shall designate the premises to be licensed by the commission by filing a drawing of the premises, which may be amended by the licensee filing a new drawing. The public spaces of a facility licensed under this subdivision (29)() are not required to be contiguous;

(iii) A facility licensed under this subdivision (29)() may grant a franchise for the provision of food or beverages, including alcoholic beverages, on its premises, and the holder of such franchise is deemed to be a licensee under this subdivision (29)();

(iv) A facility or franchisee licensed under this subdivision (29)() may separately license one (1) or more restaurants, limited service restaurants, or caterers within one (1) or more areas of the facility, or may grant a franchise for one (1) or more restaurants, limited service restaurants, or caterers, and such licensee may include one (1) or more

doing-business-as names under a single license. A restaurant, limited service restaurant, or caterer licensed under this subdivision (29)() may qualify for such license based upon non-exclusive rights to a kitchen anywhere in the facility; provided, that beer and alcoholic beverages must be stored on the licensed premises. Physical barriers controlling the ingress and egress of a facility licensed under this subdivision (29)() are not required as long as adequate security, signage, or other measures reasonably sufficient to deter customers from leaving the premises with alcoholic beverages are used and maintained;

(v) A facility licensed under this subdivision (29)() may serve beer and alcoholic beverages on the premises of any of the restaurants or limited service restaurants in the facility without compliance with § 57-4-101(p), when such restaurant or limited service restaurant is not serving beer and alcohol, and provided that all beer and alcohol is segregated;

(vi) A facility licensed under this subdivision (29)() is not required to comply with § 57-4-101(p) in the facility. A restaurant licensed under subdivision (32), limited service restaurant licensed under subdivision (24), or caterer licensed under subdivision (6) is not required to comply with § 57-4-101(p) in the facility, unless more than one (1) licensee is providing beer or alcoholic beverages at the same time and in the same space in the facility. Compliance with § 57-4-101(p) must include affixing stickers to the alcoholic beverage or beer container in lieu of serving the beverage in a labeled cup or glassware; provided, that a sticker identifying the licensee is reasonably designed to stay affixed to a container;

(vii) Each licensee under this subdivision (29)() is independently liable for violations committed by such licensee, and a separate licensee must not be held liable for the actions of another licensee. This subdivision (29)() applies to actions brought by the commission and the local beer board;

(viii) A facility licensed under this subdivision (29)() may engage in any activity related to the sale, dispensing, or giving away of alcoholic beverages and beer authorized under the authority granted to a hotel, including § 57-4-101(h) and § 57-4-203(e)(2)(A); and

(ix) Any and all terms, allowances, and authorizations of this subdivision (29)() that apply to licensees also apply to the beer permits of such licensees;

SECTION 13. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following new subdivision:

(i) A commercially operated facility that:

(a) Is located within an area designated pursuant to this subdivision (29)() situated on at least six (6) acres;

(b) Upon the completion of construction, which may occur in phases, contains a mixed commercial and residential use development, at least one (1) hotel having a minimum of one hundred (100) rooms, and mixed-use commercial buildings that include retail shopping, office space, food and beverage retail offerings, some of which may be operated by independent licensees, and indoor and outdoor dining options, including open plaza areas or green spaces for dining and recreational opportunities;

(c) Is located, in whole or in part, on the former site of an automobile dealership;

(d) Is located adjacent to and west of Interstate 40 and has frontage access to Broadway west of the Broadway Historic District;

(e) Is located in a county with a metropolitan form of government having a population of not less than five hundred thousand (500,000), according to the 2020 federal census or a subsequent federal census;

(f) Does not extend beyond one thousand feet (1,000') of the geographic center of such designated area; and

(g) May contain areas that are separated by streets or other public or private rights of way;

(ii) Facilities and individual licensees located within the designated premises, hereinafter the "primary premises," and licensed under this subdivision (29)():

(a) May be either open to the public or only to members and authorized guests; and

(b) Notwithstanding § 57-4-101(p):

(1) May include in its licensed primary premises, solely for purposes of on-premises consumption of alcoholic beverages, unless otherwise provided for herein, any or all of the property that constitutes the primary premises and may include other separately licensed premises located within the boundary of the primary premises. Such premises are not required to be contiguous. Barriers controlling the ingress and egress to the primary premises or other such premises are not required as long as adequate security or other measures are sufficient to prevent customers from leaving such primary and other premises with alcoholic beverages; and

(2) Are not required to use labeled cups and glassware, but must serve alcoholic beverages and beer in compliance with the requirements of § 57-4-101(p), which must include affixing a sticker to the alcoholic beverage or beer container in lieu of serving the beverage in a labeled cup or glassware; provided, that a sticker identifying the franchisee or licensee, which is reasonably designed to stay affixed to a container, must comply with § 57-4-101(p);

(iii) Licensees located within the primary premises shall submit a diagram to the commission that details the portion of the primary premises where the licensee intends to serve alcoholic beverages. Such areas are not required to be contiguous;

(iv) The primary licensee and each licensee licensed under this subdivision (29)() may:

(a) Serve alcoholic beverages and beer for on-premises consumption, as well as wine, high gravity beer, and beer in its original container, and spirit-based beverages in original containers that do not exceed three hundred seventy-five milliliters (375 ml) and an alcohol content that does not exceed fifteen percent (15%) by volume, for on-premises consumption; and

(b) Offer food items for sale and seating for its customers;

(v) Facilities and individual licensees located within the primary premises, irrespective of whether or not licensed under this subdivision (29)(), may apply for and obtain a catering license pursuant to subdivision (6) for purposes of selling alcoholic beverages at special events within the primary premises; provided, that such facility shall comply with all requirements to obtain such catering license, except the requirement to have a complete and adequate commercial kitchen facility. The licensed premises of a catered event held by such a licensed caterer may include the entire primary premises or a portion thereof designated with the commission;

(vi) A licensee located within the primary premises may prohibit from the exclusive portion of its premises food, beer, or alcoholic beverages that were not purchased from the licensee;

(vii) This subdivision (29)() must not be construed to prohibit a person or entity located within the primary premises from obtaining a license under this title that the person or entity is otherwise eligible to obtain in accordance with this title;

(viii) A facility licensed under this subdivision (29)() may deliver alcoholic beverages to any area within the licensed premises of the facility;

(ix) Each individual facility on the primary premises is independently liable for violations committed by such facility, and a separate facility must not be held liable for the actions of another facility;

(x) Notwithstanding chapter 5 of this title to the contrary, and subject to this subdivision (29)(), the premises of a facility licensed under this subdivision (29)() means for beer permitting purposes any or all of the premises that constitutes the primary premises. The provisions of this subdivision (29)() that apply to licensees for purposes of consuming alcoholic beverages on the premises also apply to beer permittees; and

(xi) A facility licensed under this subdivision (29)() may hold any of the licenses authorized under this subdivision (29)() and a beer permit, or may grant a franchise to one (1) or more entities for any or all such licenses or beer permits. The licensee for the primary premises or any of its franchisees licensed under this subdivision (29)(), or a separate licensee located within the primary premises, may store beer and alcoholic beverages in one (1) or more central storage locations within the primary premises; provided, that each separate licensee's inventory of beer and alcoholic beverages must be stored in a separately locked cage or other storage area. The facility may also contract with a third party for the management of all or a portion of the facility's food and beverage operations and service;

SECTION 14. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following new subdivision:

(i) A commercially or privately operated recreational facility that:

(a) Was established in 2004 as a residential golf community situated on at least one thousand four hundred forty (1,440) acres adjacent to a reservoir of the Tennessee Valley Authority system on the Tennessee River named for a sand bar located at the site of the dam prior to the dam's construction, and located less than ten thousand feet (10,000') from a controlled-access highway of the Eisenhower Interstate System and less than thirty-two thousand feet (32,000') from a second highway of the same interstate system;

(b) Operates a golf course designed by an Australian professional golfer having at least eighteen (18) holes for use by its members and their guests and that may also be open to the public;

(c) Operates at least one (1) restaurant, a marina, an outdoor amphitheater, hiking trails, and other amenities; and

(d) Is located in a county having a population of not less than fifty-four thousand eight hundred (54,800) and not more than fifty-four thousand nine hundred (54,900), according to the 2020 or a subsequent federal census;

(ii) The premises of a facility licensed under this subdivision (29)() means any or all of the property that constitutes the facility, including all indoor and outdoor areas of the premises. The licensee shall designate the premises to be licensed by the commission by filing a drawing of the premises, which may be amended by the licensee filing a subsequent, amended drawing;

(iii) Physical barriers controlling the ingress and egress of a facility licensed under this subdivision (29)() are not required as long as adequate security, signage, or other measures reasonably sufficient to deter customers from leaving the premises with alcoholic beverages are used and maintained;

(iv) A facility licensed under this subdivision (29)() is not required to comply with § 57-4-101(p), except at times and in areas where more than one (1) licensee is providing beer or alcoholic beverages at the same time and in the same area in the facility. Compliance with § 57-4-101(p) includes affixing stickers to the alcoholic beverage or beer container in lieu of serving the beverage in a labeled cup or glassware; provided, that a sticker identifying the licensee is reasonably designed to stay affixed to a container;

(v) A facility licensed under this subdivision (29)() may sell and serve beer and alcoholic beverages from one (1) or more golf carts, vehicles, or trailers, provided the golf cart, vehicle, or trailer is on the licensed premises;

(vi) A facility licensed under this subdivision (29)() may engage in any activity related to the sale, dispensing, or giving away of alcoholic beverages and beer authorized under the authority granted to a hotel licensed under §§ 57-4-102, 57-4-101(h), and 57-4-203(e)(2)(A) for guest rooms and guest houses under management by the licensee or an affiliate of the licensee;

(vii) Notwithstanding chapter 5 of this title to the contrary, the premises of a facility licensed under this subdivision (29)() means, for beer permitting purposes, any or all of the property that constitutes the facility, including all indoor and outdoor areas of the premises. The beer permittee shall designate the premises to be permitted by the local beer board by filing a drawing of the premises, which may be amended by the beer permittee filing a subsequent, amended drawing;

(viii) A facility licensed under this subdivision (29)() may grant one (1) or more franchises for the provision of food or beverages, including alcoholic beverages, on its premises, and the holder of such franchise is deemed a licensee under this subdivision (29)(). Licensees under this subdivision (29)() may exchange alcoholic beverage inventory, provided that clear records of such exchanges are maintained and all taxes are reported and paid; and

(ix) Each licensee under this subdivision (29)() is independently liable for violations committed by such licensee, and a separate licensee must not be held liable for the actions of another licensee. This subdivision (29)()(ix) applies to actions brought by the commission and the local beer board;

SECTION 15. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following as a new subdivision:

() A commercially operated facility that:

(i) Is a market and restaurant serving breakfast and lunch at least five (5) days a week and is occasionally used in the evenings for special events;

(ii) Has seating for at least forty (40) persons and contains at least one thousand eight hundred square feet (1,800 sq. ft.) of floor space on a property that is eleven one-hundredths (0.11) of an acre; and

(iii) Is located within five hundred feet (500') of a community center and within two-thousand five hundred feet (2,500') of a private university associated with the Episcopal church located in a county having a population of not less than forty-two thousand seven hundred (42,700) and not more than forty-two thousand eight hundred (42,800), according to the 2020 or a subsequent federal census;

SECTION 16. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following as a new subdivision:

()

(i) A commercially operated multi-family residential complex that possesses the following characteristics:

(a) The first phase of construction of three hundred forty (340) or more residential dwelling units was completed prior to 2025, with a second phase of four hundred twenty (420) or more residential dwelling units to be completed thereafter in multiple structures, with a dog park featuring canine amenities, a full-sized multisport simulator, an on-site barista, and a twenty-four-hour wellness center that is located within two thousand eight hundred feet (2,800') of a waterway that flows adjacent to a membership club with two (2) eighteen-hole golf courses, within three thousand two hundred feet (3,200') of a forested municipal park offering a loop trail, children's playground, and picnic pavilion, within three thousand four hundred feet (3,400') of a public high school established in 1996, and within a municipality with a population of not less than eighty-three thousand, four hundred (83,400) nor more than eighty-three thousand,

five hundred (83,500), according to the 2020 or any subsequent federal census; or

(b) Having at least four hundred and sixty (460) or more residential dwelling units in multiple structures constructed in phases, with the first phase completed prior to 2027, a resort-style spa, two (2) pools, a rooftop lounge, and a staffed barista experience, located within two hundred fifty feet (250') of a controlled-access highway of the Eisenhower Interstate System, within two hundred fifty feet (250') of green space with walking trails, a lake, and an amphitheater, within six hundred feet (600') of a creek, within one thousand four hundred feet (1,400') of the North American headquarters of a publicly-traded manufacturer of automobiles, and within a municipality with a population of not less than eighty-three thousand, four hundred (83,400) nor more than eighty-three thousand, five hundred (83,500), according to the 2020 or any subsequent census;

(ii) A facility licensed under this subdivision (29)() is not required to prepare or serve food or have a kitchen or dining room;

(iii) The premises of a facility licensed under this subdivision (29)() may include exterior patios, gardens, lawns, swimming pools, and other recreation and entertainment areas throughout the facility;

(iv) A facility licensed under this subdivision (29)() may be open to the public or may limit admission to residents and their guests of the facility;

(v) A facility licensed under this subdivision (29)() may contain structures that are separated by streets or other public or private rights of way;

(vi) A facility licensed under this subdivision (29)() may be issued one (1) or more licenses for consumption on the premises;

(vii) A facility licensed under this subdivision (29)() may hold any of the licenses authorized under this subdivision (29)() or may grant a franchise to one (1) or more entities for any or all such licenses; and

(viii) All terms, allowances, and authorizations of this subdivision (29)() that apply to licensees also apply to the beer permits of such licensees;

SECTION 17. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following new subdivision:

(i) A commercially or privately operated facility that:

(a) Is a for-profit membership-based social club, organized and existing under the laws of this state, that is located in a county with not less than two hundred forty-seven thousand seven hundred (247,700) and not more than two hundred forty-seven thousand eight hundred (247,800), according to the 2020 or a subsequent federal census;

(b) Is located in a building that is on the public square of a city that was founded in 1799;

(c) Is located within four hundred feet (400') of a Greek Revival-style courthouse that was built in 1858;

(d) Is located within four thousand feet (4,000') of a historic stove manufacturing plant originally built in 1929;

(e) Is organized and operated exclusively for offering an upscale business club environment for learning and networking, where members receive exclusive access to amenities and opportunities in the region;

(f) Offers its members the ability to purchase all related services and experiences through cash or credit card; and

(g) Does not discriminate against members or potential members or bona fide guests of such members on the basis of gender, race, creed, color, sex, age, religion, or national origin;

(ii) The premises of a facility licensed under this subdivision (29)() means any or all of the property that constitutes the facility, including any noncontiguous portions. The licensee shall designate the premises to be licensed by the commission by filing a drawing of the premises with the commission, which may be amended by the licensee filing a new drawing;

(iii) Members of a facility licensed under this subdivision (29)() may have personal lockers on the premises of the facility where they store bottles of alcoholic beverages that they bring themselves or that they purchase from the facility;

(iv) Notwithstanding chapter 5 of this title to the contrary, the premises of a facility licensed under this subdivision (29)() means, for beer permitting purposes, any or all of the property that constitutes the facility as designated in this subdivision (29)(). The beer permittee shall designate the premises to be permitted by the local beer board by filing a drawing of the premises with such board, which may be amended by the beer permittee filing a new drawing;

(v) A facility licensed under this subdivision (29)() may serve alcoholic beverages and beer anywhere on the premises, including noncontiguous portions of the premises; and

(vi) A facility licensed under this subdivision (29)() may grant a franchise for the provision of food or beverages, including alcoholic beverages, on its premises, and the holder of such franchise is deemed to be a licensee under this subdivision (29)();

SECTION 18. Tennessee Code Annotated, Section 57-4-102(10), is amended by deleting the subdivision and substituting the following:

(A) "Commercial airline travel club" means an organization established and operated by or for a commercial airline as defined in this section for the convenience and comfort of airline passengers;

(B) "Commercial airline travel club" also means an organization established and operated by or for a terminal building of a commercial air carrier airport as defined in this section for the convenience and comfort of airline passengers; and

(C) A commercial airline travel club may hold one (1) or more licenses authorized under this subdivision (10) or may grant a franchise to one (1) or more entities for any or all such licenses; provided, that the license fee required to be paid by commercial airline travel clubs pursuant to § 57-4-301 must be paid for each separate facility that may be covered under a license issued pursuant to this subdivision (10);

SECTION 19. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following new subdivision:

(i) A commercially operated independent and assisted living facility with individual living unit apartments for residents and a dining room for residents and their guests that:

(a) Operates between one hundred ninety (190) and two hundred (200) individual living unit apartments for residents, and is located less than nine hundred feet (900') from a farm having more than thirty (30) acres, less than four hundred feet (400') south of the county line, less than one hundred fifty feet (150') from a street named after a place of worship, and in a county with a population of not less than two hundred forty-seven thousand seven hundred (247,700) and not more than two hundred forty-seven thousand eight hundred (247,800), according to the 2020 or a subsequent federal census;

(b) Operates between one hundred seventy-five (175) and one hundred eighty-five (185) individual living unit apartments for residents, and is located on a state route adjacent to Stonemeade Stream, less than one thousand three hundred feet (1,300') from a public school, between four thousand feet (4,000') and five thousand feet (5,000') northeast of the terminus of a recreational road and scenic drive that is administered by the national park service, and in a county

with a metropolitan form of government with a population of not less than five hundred thousand (500,000), according to the 2020 or a subsequent federal census;

(c) Operates between one hundred eighty-five (185) and one hundred ninety-five (195) individual living unit apartments for residents, and is located adjacent to a deed-restricted residential community with over one thousand (1,000) residential units that is named for the protective care of a deity, adjacent to a greenway sharing a common name with the deed-restricted residential community, less than one thousand feet (1,000') from a highway maintenance facility that has limited access ingress and egress to the eastern bound lanes of a controlled-access highway of the Eisenhower Interstate System, and in a county with a population of not less than one hundred forty-seven thousand seven hundred (147,700) and not more than one hundred forty-seven thousand eight hundred (147,800), according to the 2020 or a subsequent federal census;

(d) Operates between one hundred seventy (170) and one hundred eighty (180) individual living unit apartments for residents, and is located less than three thousand feet (3,000') from a public school, less than three thousand feet (3,000') from Puckett Creek, less than three thousand two hundred feet (3,200') from Puckett Cemetery, and in a county with a population of not less than three hundred forty-one thousand four hundred (341,400) and not more than three hundred forty-one thousand five hundred (341,500), according to the 2020 or a subsequent federal census; or

(e) Operates between one hundred ninety (190) and two hundred (200) individual living unit apartments for residents, and is located at the intersection of a federal highway and a street named after a log home constructed before 1850 that is now a historical site, less than one thousand feet (1,000') from an eighteen-hole public golf course with a driving range and clubhouse that has

been in existence for over fifty (50) years, and in a county having a population of more than nine hundred thousand (900,000), according to the 2020 or a subsequent federal census;

(ii) The premises of a facility identified in subdivision (29)() (i)(a), (b), (c), (d), or (e) must be individually licensed by the commission and such a licensed premises under this subdivision (29)() means any and all of the property that constitutes the facility. A licensee shall designate the premises to be licensed by the commission by filing a drawing of the premises, which may be amended by the licensee filing a new drawing;

(iii) A facility licensed under this subdivision (29)() may grant a franchise for the provision of food or beverages, including alcoholic beverages, on its premises, and the holder of such franchise is deemed to be a licensee under subdivision (29)(); and

(iv) Any and all terms, allowances, and authorizations of this subdivision (29)() that apply to licensees also apply to the beer permits of such licensees;

SECTION 20. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following new subdivision:

() A commercially operated retirement center facility that:

(i) Is located in a county with a metropolitan form of government having a population of not less than five hundred thousand (500,000), according to the 2020 or a subsequent federal census;

(ii) Is situated on at least eight (8) acres;

(iii) Contains a full-service restaurant and offers multiple additional dining and beverage service options, some of which may be operated by independent licensees, and which offers to the facility's residents and their guests food, non-alcoholic beverages, alcoholic beverages, and beer, including wine and alcoholic beverage tastings;

(iv) Contains a rooftop bar and lounge, a wellness center with an indoor pool, an outdoor recreational area with views of a lake, and at least one hundred (100) individual living apartments;

(v) The premises of any facility licensed under this subdivision (29)() means any or all of the property that constitutes the facility. A licensee shall designate the premises to be licensed by the commission by filing a drawing of the premises, which may be amended by the licensee filing a new drawing;

(vi) Notwithstanding chapter 5 of this title to the contrary, the premises of the facility licensed under this subdivision (29)() means, for beer permitting purposes, any or all of the property that constitutes the facility. The beer permittee shall designate the premises to be permitted by the local beer board by filing a drawing of the premises, which may be amended by the beer permittee filing a new drawing; and

(vii) A facility licensed under this subdivision (29)() may grant a franchise to one (1) or more entities, and such franchisee is deemed to be a licensee under this subdivision (29)(). The licensee or any of its franchisees licensed under this subdivision (29)(), or another licensee located within the premises, may store beer and alcoholic beverages in one (1) or more central storage locations within the premises; provided, that each separate licensee's inventory of beer and alcoholic beverages must be stored in a separately locked cage or other storage area. The facility may also contract with a third party for the management of all or a part of the facility's food and beverage operations and service;

SECTION 21. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following new subdivision:

(i) A commercially operated facility that:

(a) Is located on property situated on at least fourteen (14) acres and that sits north of and less than two (2) miles away from, as measured in a straight-line distance, the Tennessee River;

(b) Upon the completion of construction, which may occur in phases, contains a baseball stadium having a seating capacity of at least six thousand (6,000) and which is intended to serve as the home stadium for a minor league baseball team as well as a venue for other entertainment events such as concerts;

(c) Is located, in whole or in part, on the former site of a food manufacturing facility;

(d) Contains mixed-use buildings that include residential apartment units, retail shopping, food and beverage dining and takeaway options, some of which may be operated by independent licensees, indoor and outdoor seating areas, and open plaza areas or green spaces for dining and recreational opportunities;

(e) Is located in a home rule municipality with a population of not less than one hundred ninety thousand seven hundred (190,700) and not more than one hundred ninety thousand eight hundred (190,800), according to the 2020 or a subsequent federal census;

(f) Does not extend beyond one thousand five-hundred feet (1,500') of the geographic center of the designated premises;

(g) May contain areas that are separated by streets or other public or private rights of way; and

(h) Has received approval for the facility's area diagram and general plan for the facility's sale, service, and consumption of alcoholic beverages and beer;

(ii) Facilities and individual licensees located within primary premises designated under this subdivision (29)(), hereinafter the "primary premises":

(a) May be open to the public or only to members and authorized guests;
and

(b) Notwithstanding § 57-4-101(p):

(1) May include in the licensed primary premises, solely for purposes of on-premises consumption of alcoholic beverages, unless otherwise provided for herein, any or all of the property that constitutes the primary premises and may include other separately licensed premises located within the boundary of the primary premises. Such premises are not required to be contiguous. Barriers controlling the ingress and egress to the primary premises or other such premises are not required as long as adequate security or other measures sufficient to prevent customers from leaving such primary and other premises with alcoholic beverages are used and maintained; and

(2) Are not required to use labeled cups and glassware, but must serve alcoholic beverages and beer in compliance with the requirements of § 57-4-101(p), which shall include affixing a sticker to the alcoholic beverage or beer container in lieu of serving the beverage in labeled cup or glassware; provided, that a sticker identifying the franchisee or licensee, which is reasonably designed to stay affixed to a container, must comply with § 57-4-101(p);

(iii) The licensee of the primary premises shall submit a diagram to the commission which details that portion of the primary premises where the licensee intends to serve alcoholic beverages, which areas are not required to be contiguous;

(iv) The primary licensee and each licensee licensed under this subdivision (29)(
) may:

(a) Serve all manner of alcoholic beverages and beer allowable under this title by-the-drink and for on-premise consumption, as well as wine, high

gravity beer, and beer in its original container, and spirit-based beverages in original containers that do not exceed three hundred seventy-five milliliters (375 ml) and an alcohol content that does not exceed fifteen percent (15%) by volume, for on-premises consumption; and

(b) Offer food items for sale and seating for its customers;

(v) Facilities and individual licensees located within the primary premises, irrespective of whether or not licensed under this subdivision (29)(), may apply for and obtain a catering license pursuant to subdivision (6) for purposes of selling alcoholic beverages at special events within the primary premises; provided, that such facility shall comply with all requirements to obtain such catering license, except the requirement to have a complete and adequate commercial kitchen facility pursuant to subdivision (6). The licensed premises of a catered event held by such a licensed caterer may include the entire primary premises or a portion thereof designated with the commission;

(vi) A licensee located within the primary premises may prohibit from the exclusive portion of its premises food, beer, or alcoholic beverages which were not purchased from the licensee;

(vii) This subdivision (29)() must not be construed to prohibit a person or entity located within the primary premises from obtaining another license under this title 57 that the person or entity is otherwise eligible to obtain pursuant to law;

(viii) A facility licensed under this subdivision (29)() may deliver alcoholic beverages to any area within the licensed premises of the facility;

(ix) Each individual facility on the primary premises is independently liable for violations committed by such facility, and a separate facility must not be held liable for the actions of another facility;

(x) Notwithstanding chapter 5 of this title to the contrary, and subject to this subdivision (29)(), the premises of a facility licensed under this subdivision (29)() mean for beer permitting purposes any or all of the premises that constitutes the primary

premises. The provisions of this subdivision (29)() that apply to licensees for purposes of consuming alcoholic beverages on the premises also apply to beer permittees;

(xi) A facility licensed under this subdivision (29)() may hold any of the licenses authorized under this subdivision (29)() and a beer permit, or may grant a franchise to one (1) or more entities for any or all such licenses or beer permits. The licensee for the primary premises or any of its franchisees licensed under this subdivision (29)(), or a separate licensee located within the primary premises, may store beer and alcoholic beverages in one (1) or more central storage locations within the primary premises; provided, that each separate licensee's inventory of beer and alcoholic beverages must be stored in a separately locked cage or other storage area. The facility may also contract with a third party for the management of all or part of the facility's food and beverage operations and service; and

(xii) A license may only be initially issued to a facility under this subdivision (29)() after the governing body of the municipality in which the premises is located adopts an ordinance or resolution stating the governing body's approval and forwards a copy of the ordinance or resolution to the commission;

SECTION 22. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following new subdivision:

(i) A commercially operated facility that:

(a) Operates as a hotel and is located in a historic building, constructed as early as 1906, that served at different points in time as a bordello, a bath house, and a boarding house;

(b) Offers sleeping accommodations for adequate pay to travelers and guests whether transient, permanent, or residential, totaling ten (10) or more rooms;

(c) Has a restaurant where meals are regularly served with one (1) or more public dining rooms, adequate and sanitary kitchen facilities, and seating both indoors and outdoors, for not less than fifty (50) persons;

(d) Is located approximately one thousand feet (1,000') from a navigable waterway, approximately one thousand one hundred feet (1,100') from a former motel that now serves as a museum for American civil rights history, and approximately seven hundred feet (700') from the administrative offices for the largest three-service municipal utility in the United States; and

(e) Is located in a county having a population of not less than nine hundred thousand (900,000), according to the 2020 or a subsequent federal census;

(ii) A facility licensed under this subdivision (29)() may grant a franchise for the provision of food or beverages, including alcoholic beverages, on its premises, and the holder of such franchise is deemed to be a licensee under this subdivision (29)(); and

(iii) A facility licensed under this subdivision (29)() may engage in any activity related to the sale, dispensing, or giving away of alcoholic beverages and beer authorized under the authority granted to a hotel under chapter 4 of this title, including §§ 57-4-101(h) and 57-4-203(e)(2)(A);

SECTION 23. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following new subdivision:

() A commercially operated facility that:

(i) Was established in 2018, is situated on twenty-three (23) acres, and is located approximately one (1) mile from the Nolichucky River;

(ii) Operates a restored historic farmhouse of approximately three thousand five hundred square feet (3,500 sq. ft.) that was constructed between 1830 and 1835 and that is on the national register of historic places; a creekside barn of approximately seven thousand square feet (7,000 sq. ft.) that serves as

an indoor event space and that features a hand-finished tin ceiling, three (3) chandeliers, and a limestone fireplace; and seven (7) RV power sources;

(iii) Offers catering services and seating for two hundred (200) patrons, with patio seating for an additional fifty (50) patrons;

(iv) Offers overnight accommodations for twenty-seven (27) patrons;

(v) Features other structures built in the 1830's such as a smoke house, spring house, grist mill, and general store;

(vi) Serves as a venue for weddings, corporate events, showers, parties, retreats, fundraising and community events, and similar events; and

(vii) Is located in a county with a population of not less than one hundred thirty-three thousand (133,000) and not more than one hundred thirty-three thousand one hundred (133,100), according to the 2020 or a subsequent federal census;

SECTION 24. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following new subdivision:

(i) A commercially or privately operated facility that:

(a) Is located in a residential golf course community situated on one (1) or more parcels of land that totals at least seven hundred (700) acres;

(b) Is located on property all or part of which is situated adjacent to U.S. Highway 431;

(c) Is located on property all or part of which is located within one (1) mile from a county with a population of not less than two hundred forty-seven thousand seven hundred (247,700) and not more than two hundred forty-seven thousand eight hundred (247,800), according to the 2020 or a subsequent federal census;

(d) Operates a golf course having at least eighteen (18) holes for use by its members and their guests;

(e) Has at least seventy-five (75) dues-paying members who pay dues of at least five thousand dollars (\$5,000) per year;

(f) Does not discriminate against members or potential members or bona fide guests of such members on the basis of gender, race, creed, color, sex, age, religion, or national origin; and

(g) Is located in a county with a population of not less than one hundred thousand nine hundred (100,900) and not more than one hundred one thousand (101,000), according to the 2020 or any subsequent federal census;

(ii) The premises of a facility licensed under this subdivision (29)() means any or all of the property that constitutes the facility, including any subsequently constructed buildings or subsequently acquired contiguous property. The licensee shall designate the premises to be licensed by the commission by filing a drawing of the premises, which may be amended by the licensee filing a new drawing;

(iii) Notwithstanding chapter 5 of this title to the contrary, the premises of a facility licensed under this subdivision (29)() means, for beer permitting purposes, any or all of the property that constitutes the facility as designated in this subdivision (29)(). The beer permittee shall designate the premises to be permitted by the local beer board by filing a drawing of the premises, which may be amended by the beer permittee filing a new drawing;

(iv) Members of a facility licensed under this subdivision (29)() are permitted to have personal lockers on the premises of the facility where they may store bottles of wine that they bring themselves or that they purchase from the facility;

(v) A facility licensed under this subdivision (29)() may grant a franchise for the provision of food or beverage, including alcoholic beverages, on its premises, and the holder of such franchise shall also be considered a licensee under this subdivision (29)(); and

(vi) A facility licensed under this subdivision (29)() may obtain a license as a caterer under subdivision (6);

SECTION 25. Tennessee Code Annotated, Section 57-4-102(29), is amended by adding the following new subdivision:

() A commercially operated facility that is a private club and that:

(i) Has been in operation for over fifteen (15) years and is located approximately eight (8) miles east of Interstate 65 off of Highway 96;

(ii) Is situated on approximately five (5) acres, consisting of several buildings, including a historic church that is a venue for weddings, memorial services, and similar events;

(iii) Has a five thousand square foot (5,000 sq. ft.) clubhouse with a restaurant that is a private dining facility that serves as a special events venue and as a meeting center for homeowners' associations and other groups, and has a heated pool, large cabana, weight room, and stand-alone restroom building;

(iv) Employs a full-time staff; and

(v) Is located in a county with a population of not less than two hundred forty-seven thousand seven hundred (247,700) and not more than two hundred forty-seven thousand eight hundred (247,800), according to the 2020 or a subsequent federal census;

SECTION 26. This act takes effect upon becoming a law, the public welfare requiring it.